

24CV04252 Juan Nathaniel Lopez et al vs Brock Alexander Hoffman et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-03

Motion: Motion: Order re Permitting Discovery of Financial Institution

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Tentative Ruling: Juan Nathaniel Lopez et al vs Brock Alexander Hoffman et al

Case Number

24CV04252

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/03/2026 - 10:00

Nature of Proceedings

Motion: Order re Permitting Discovery of Financial Institution

Tentative Ruling

Juan Nathaniel Lopez, et al. v. Brock Alexander Hoffman, et al.

Case No. 24CV04252

Hearing Date: August 3, 2026

MATTER: Plaintiffs' Motion to Allow for Discovery of Evidence of Defendant Brock Hoffman's Financial Information

ATTORNEYS: For Plaintiffs Juan N. Lopez, Trinity Lopez, and Adrian Lopez: Brian A. Osborne, Osborn Law Firm

For Defendant and Cross-Defendant Brock Alexander Hoffman: Laura S. Flynn, MacDonald & Cody LLP

For Defendant and Cross-Complainant City of Santa Barbara: Sarah J. Knecht, Tom R. Shapiro

For Defendant Jason Lopez: No appearance

TENTATIVE RULING:

Plaintiff's motion to allow for discovery of evidence of defendant Brock Hoffman's financial information is granted.

Background:

This action commenced on July 26, 2024, by the filing of the complaint by plaintiffs Juan Nathaniel Lopez ("Juan N."), Trinity Lopez ("Trinity"), and Adrian Lopez ("Adrian") (collectively, "plaintiffs"), all individually and as successor-in-interest to the Estate of Juan Lopez ("Decedent"), for wrongful death and violation of Penal Code section 20001, against defendant Brock Alexander Hoffman ("Hoffman"). (Note: Due to common surnames, plaintiffs will be individually referred to by their given names for clarity. No disrespect is intended.)

On August 14, 2024, plaintiffs filed their first amended complaint adding a cause of action for negligence.

On February 14, 2025, Jason Lopez ("Jason") was substituted into the case in place of Doe 1, and the City of Santa Barbara (the "City") was substituted into the case in place of Doe 2.

On May 5, 2025, plaintiffs filed the operative second amended complaint ("SAC") for: (1) Wrongful death, (2) Negligence, (3) Violation of Penal Code section 20001, (4) Violation of Penal Code section 135, and (5) Violation of Government Code section 835.

As alleged in the SAC:

On June 29, 2024, at approximately 11:30 p.m., Decedent was walking along a residential street near Cliff Drive and Loma Alta when he was struck by a car, driven by Hoffman, causing Decedent's death. (SAC, ¶ 10.) Hoffman did not stop, did not remain at the scene, and did not report the incident to law enforcement. (Ibid.) Hoffman instead attempted to conceal his involvement in the incident. (Ibid.)

In addition to general and special damages, plaintiffs seek exemplary damages, arguing that Hoffman's conduct was despicable, fraudulent, malicious, oppressive, and in reckless or conscious disregard of the rights of Decedent.

On June 4, 2025, the City answered the SAC with a general denial and 14 affirmative defenses. On the same date, the City also filed a cross-complaint against Hoffman for indemnification, contribution, and apportionment of fault.

On August 4, 2025, Hoffman answered the SAC with a general denial and 13 affirmative defenses. On the same date, Hoffman also filed an answer to the City's cross-complaint.

On March 13, 2026, plaintiffs moved for an order permitting discovery of Hoffman's financial information. Hoffman opposed the motion.

On July 6, 2026, due to plaintiffs' failure to file a substantively and procedurally proper request for judicial notice ("RJN") of Hoffman's criminal documents, the Court continued the motion to August 3, 2026. Plaintiffs were ordered to file and serve substantively and procedurally proper RJN no later than July 13, 2026.

On July 8, 2026, plaintiffs timely filed and served a compliant RJN, requesting the court to take judicial notice of six documents from Hoffman's criminal case.

Also, by way of the July 6, 2026 order, Hoffman was to file opposition, if any, to the RJN no later than July 27, 2026. He did not do so.

Analysis:

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294, subd. (a).)

Civil Code section 3295, subdivision (c) provides: "No pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant's possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts. Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial."

The purpose of requiring the plaintiff to establish that there is a substantial probability that the plaintiff will prevail on a claim for punitive damages "is to protect defendants' financial privacy and prevent defendants from being pressured into settling nonmeritorious cases in order to avoid disclosure of their financial information." (Kerner v. Superior Court (2012) 206 Cal.App.4th 84, 120.) "A trial court considering a motion to permit discovery of a defendant's financial condition must weigh the evidence submitted in support of and in opposition to the motion and determine whether the plaintiff has established a 'substantial probability' (Civ. Code, § 3295, subd. (c)) of prevailing on a claim for punitive damages. In this context, a 'substantial probability' of prevailing on a claim for punitive damages means that it is 'very likely' that the plaintiff will prevail on such a claim or there is 'a strong likelihood' that the plaintiff will prevail on such a claim." (Ibid.)

Plaintiffs argue:

"Mr. Hoffman was charged with felony hit and run and with misdemeanor tampering with evidence. Mr. Hoffman entered no contest pleas on December 16, 2025 and was sentenced to two years in state prison." (Motion, p. 3, ll. 12-15.)

"Mr. Hoffman's conviction to a felony charge of leaving the scene of an accident resulting in death should be more than enough evidence for plaintiffs to meet their burden insofar as this motion is concerned." (Motion, p. 4, ll. 21-23.)

Request for Judicial Notice

Plaintiffs request that the court take judicial notice of: (1) Felony Complaint in Hoffman's criminal case; (2) Felony Information in Hoffman's criminal case; (3) November 3, 2025 Minute Order in Hoffman's criminal case; (4) December 16, 2025 Minute Order in Hoffman's criminal case; (5) November 3, 2025 Plea Form in Hoffman's criminal case; and (6) December 16, 2025, Minute Order from Hoffman's Sentence/Disposition Hearing.

Pursuant to Evidence Code section 452, subdivisions (c) and (d), judicial notice may be taken of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States" and "Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

"(a) The official acts and records specified in subdivisions (c) and (d) of Section 452 include any computer-generated official court records, as specified by the Judicial Council, that relate to criminal convictions, when the record is certified by a clerk of the superior court pursuant to Section 69844.5 of the Government Code at the time of computer entry.

(b)(1) An official record of conviction certified in accordance with subdivision (a) of Section 1530, or an electronically digitized copy thereof, is admissible under Section 1280 to prove the commission, attempted commission, or solicitation of a criminal offense, prior conviction, service of a prison term, or other act, condition, or event recorded by the record.

(2) For purposes of this subdivision, "electronically digitized copy" means a copy that is made by scanning, photographing, or otherwise exactly reproducing a document, is stored or maintained in a digitized format, and meets either of the following requirements:

(A) The copy bears an electronic signature or watermark unique to the entity responsible for certifying the document.

(B) The copied document is an official record of conviction, certified in accordance with subdivision (a) of Section 1530, that is transmitted by the clerk of the superior court in a manner showing that the copy was prepared and transmitted by that clerk of the superior court. A seal, signature, or other indicia of the court shall constitute adequate showing." (Evid. Code, § 452.5.)

" 'Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents.' " [Citation.]" (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.)

The court will take judicial notice of the documents. However, the only two documents that the court finds relevant are the Plea Form, with addendum to Section 9 - Factual Basis for the Plea, and the sentencing minute order.

Addendum to Section 9 of the Plea Form, which is initialed by Hoffman, reflects:

"I admit the following as a factual basis for my plea: On or about June 29, 2024 in Santa Barbara County, I drove my vehicle and unlawfully and knowingly was involved in an accident resulting in the death of another person, Juan Lopez. I fled the scene and failed to stop at the scene, render reasonable assistance to Mr. Lopez, and provide my contact information and registration information." Directly below that statement, Hoffman admits to an aggravating factor.

The sentencing minute order reflects that Hoffman was sentenced to two years in state prison.

Hoffman was convicted of felony hit and run and misdemeanor tampering with evidence, in connection with Decedent's death. As such, there is a substantial probability that plaintiffs will prevail on their punitive damages claim.

The motion for discovery of Hoffman's financial condition will be granted.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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